

PCU329534 RODRIGUEZ vs. CENTRAL TULARE COUNTY SCHOOL DISTRICT, et al.

County: tulare

Division: Civil Law and Motion

Department: 19-Honorable Russell P. Burke

Hearing date: 2026-08-18

Motion: Demurrer and Motion to Strike

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Re: RODRIGUEZ vs. CENTRAL TULARE COUNTY SCHOOL DISTRICT, et al.

Case No.: PCU329534

Date: August 18, 2026

Time: 8:30 A.M.

Dept. 19-Honorable Russell P. Burke

Motion: Demurrer and Motion to Strike

Tentative Ruling: The demurrer is sustained without leave to amend as to the first cause of action; sustained with leave to amend as to the second cause of action, and the motion to strike is granted.

Plaintiff Lysette Rodriguez, a minor, by and through her guardian ad litem, Bryan Kevin Rodriguez, commenced this suit with a complaint against "Central Tulare County School District," "Porter Unified School District," "Tulare County," and 100 "Does."

Plaintiff later filed an amendment "to reflect the true name of DOE 1 to be Porterville Unified School District ... wherever it appears in the pleading." Plaintiff then caused "Tulare County" to be dismissed without prejudice. After that, plaintiff filed a first amended complaint identifying the following as named defendants: "Porterville Unified School District" and "Central Tulare County Schools JPA."

Plaintiff's first amended complaint (FAC) contains four causes of action against all identified defendants therein.

Defendants, who self-identify themselves as "Central Tulare County School District" and "Porterville Unified School District" demurrer to the first two causes of action of plaintiff's FAC.

Defendants state Porterville Unified School District was erroneously sued as "Porter Unified School District," but they do not address plaintiff's prior identification of "Central Tulare County School District" as a defendant in the original complaint as compared to plaintiff's current identification of "Central Tulare County Schools JPA" as a defendant in the FAC (inferably, it appears, in place of "Central Tulare County School District").

For the purposes of its analysis here, the court assumes, given the absence of any apparent dispute, that Porterville Unified School District is a properly named defendant in this case and “Porter Unified School District” is not; and, further, that “Central Tulare County School District” and “Central Tulare County Schools JPA” refer to one and the same defendant. Accordingly, “defendants” as used herein refers (a) to defendant Porterville Unified School District; and (b) to another single defendant known as “Central Tulare County School District” and/or “Central Tulare County Schools JPA.”

Moving on to the substance of the matter, the court notes that the first two causes of action of the FAC challenged on demurrer are for: (1) Breach of Mandatory Duties Imposed by Enactment (Gov. Code, § 815.6; Ed. Code, §§ 32280, 32281, 32282, 32286, 32288); and (2) Breach of Mandatory Duties Imposed by Enactment: Dangerous Pupil and Teacher Notification Duties (Gov. Code, § 815.6; Ed. Code § 49079).

Further, the court notes, defendants move to strike portions of the FAC on the ground that plaintiff’s prayer for pre-judgment interest is improper against a public entity in a tort action as a matter of law.

I. Demurrer

This action arises from an incident occurring at Monache High School on May 19, 2025.

Plaintiff alleges Noah Serrate entered Monache High School through an open and unguarded gate, remained on campus undetected for approximately one hour, reached plaintiff’s second-floor classroom, and attacked her with a meat cleaver-style knife while she attended a school-sponsored Driver’s Education class taught by Robert Sundre.

Plaintiff alleges Serrate was a former student with known dangerous propensities. Plaintiff specifically alleged that Serrate had previously threatened to shoot Monache High School’s baseball team, stab school employees, stab himself, and stab everyone nearby; that school employees had reported they believed Serrate’s threats were credible and feared he would carry them out; that Serrate’s school-issued device contained repeated searches concerning school shootings, mass shootings, firearms, knives, stabbings, terrorist attacks, and serial killers; that Serrate had been arrested for felony criminal threats; and that school district personnel had been informed that Serrate was released on bail and prohibited from returning to the Monache High School campus.

A. First Cause of Action - Breach of Mandatory Duties Imposed by Enactment (Gov. Code, § 815.6; Ed. Code, §§ 32280, 32281, 32282, 32286, 32288)

Government Code section 815.6 provides: “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

As indicated by the statutory text, section 815.6 “has three elements that must be satisfied to impose public entity liability: (1) a mandatory duty was imposed on the public entity by an enactment; (2) the enactment was designed to protect against the particular kind of injury allegedly suffered; and (3) the breach of the mandatory duty proximately caused the injury.” (B.H. v. County of San Bernardino (2015) 62 Cal.4th 168, 179 [195 Cal. Rptr. 3d 220, 361 P.3d 319] (B.H.).)

A “mandatory duty” under section 815.6 means “an obligatory duty,” as opposed to “a discretionary or permissive duty,” which cannot support liability under section 815.6. (Thompson v. County of Los Angeles (2022) 85 Cal.App.5th 376, 380 [301 Cal. Rptr. 3d 289].) Accordingly, “[i]t is not enough that an enactment requires a public entity or officer to perform a function if the function itself involves the exercise of discretion.” (Ibid.) “Courts have construed this requirement ‘rather strictly, finding a mandatory duty only if the enactment ‘affirmatively imposes the duty and provides implementing guidelines.’ [Citation.]” (County of Los Angeles v. Superior Court (2024) 107 Cal.App.5th 160, 178 [328 Cal.Rptr.3d 167].)

Plaintiff first cause of action asserts breach of mandatory duties imposed by Education Code sections 32280, 32281, 32282, 32286, 32288.

By way of background, these Education Code sections appear in article 5 regarding “school safety plans,” under chapter 2.5 of part 19 of division 1 of title 1 of the Education Code (article 5). Generally, article 5 makes “[e]ach school district and county office of education ... responsible for the overall development of ... comprehensive school safety plans for its schools” (§ 32281, subd. (a)), with each school required to “adopt its comprehensive school safety plan by March 1, 2000, and ... review and update its plan by March 1, every year thereafter” (§ 32286, subd. (a)). School safety plans are required to include, without limitation, various items listed in section 32282, subdivision (a)(2)(A) through (O).

Plaintiff alleges defendants “failed to adequately review, update, approve, implement, and ensure implementation of Monache High School’s comprehensive school safety plan before the subject incident, including by March 1, 2025, as required by Education Code sections 32286 and 32288.

As noted above, section 32286 requires schools to adopt, review and annually update school safety plans (id., subd. (a)). Section 32288, separately, imposes requirements (i) for schools to forward their safety plans for review to the school district or county office of education for approval; (ii) for public meetings “to allow members of the public the opportunity to express an opinion about the school safety plan” before it is adopted; and (iii) for notice to the Department of Education regarding noncomplying schools.

As indicated, however, plaintiff only alleges, in general terms, that defendants “failed to adequately review, update, approve, implement, and ensure implementation of Monache High School’s comprehensive school safety plan before the subject incident, including by March 1, 2025.”

Plaintiff goes on to further allege defendants breached various claimed duties under 32282, subdivision (a), which subdivision lists the various items “[t]he comprehensive school safety plan shall include.” To wit:

Subd. (a)(1)

Subdivision (a)(1) requires safety plans to include “Assessing the current status of crime committed on school campuses and at school-related functions” and plaintiff alleges defendants “failed to adequately assess” that “status.”

Subd. (a)(2)

Subdivision (a)(2) requires safety plans to include “Identifying appropriate strategies and programs that will provide or maintain a high level of school safety and address the school’s procedures for complying with existing laws related to school safety, which shall include the development of all of [various listed items]” and plaintiff alleges defendants “failed to adequately identify, develop, and implement such “appropriate strategies and programs.”

As specifically listed in the FAC:

Subdivision (a)(2)(C) requires “[p]olicies pursuant to subdivision (d) of Section 48915 for pupils who committed an act listed in subdivision (c) of Section 48915 and other school-designated serious acts that would lead to suspension, expulsion, or mandatory expulsion recommendations pursuant to Article 1 (commencing with Section 48900) of Chapter 6 of Part 27 of Division 4 of Title 2. [The court notes: Section 48900, along with sections 48900.2 through 48900.4 and 48900.7, list various acts for which a pupil may be “suspended from school or recommended for expulsion”; section 48915 lists various acts for which “the principal or the superintendent of schools shall recommend the expulsion of a pupil”; and section 48915,

subdivision (c) lists various acts for which “[t]he principal or superintendent of schools shall immediately suspend ... and shall recommend expulsion of a pupil,” with subdivision (d) of that section requiring expulsion upon the school district board finding that a pupil committed an act list in subdivision (c).]

Subdivision (a)(2)(D) requires “[p]rocedures to notify teachers of dangerous pupils pursuant to Section 49079.” [The court notes: Section 49079 requires school districts to “inform the teacher of each pupil who has engaged in, or is reasonably suspected to have engaged in, any of the acts described in any of the subdivisions, except subdivision (h), of Section 48900 or in Section 48900.2, 48900.3, 48900.4, or 48900.7 that the pupil engaged in, or is reasonably suspected to have engaged in, those acts.” (Id., subd. (a).)]

Subdivision (a)(2)(G) requires “[p]rocedures for safe ingress and egress of pupils, parents, and school employees to and from school.”

Subdivision (a)(2)(H) requires “[a] safe and orderly environment conducive to learning at the school.”

Subdivision (a)(2)(J) requires “[p]rocedures for conducting tactical responses to criminal incidents, including procedures related to individuals with guns on school campuses and at school-related functions.”

Subdivision (a)(2)(K) requires, “[i]f a comprehensive school safety plan includes procedures to prepare for active shooters or other armed assailants by conducting a drill, a school shall comply with [listed requirements] relating to the drill.”

Subdivision (a)(2)(L) requires “[p]rocedures to assess and respond to reports of any dangerous, violent, or unlawful activity that is being conducted or threatened to be conducted at the school, at an activity sponsored by the school, or on a schoolbus serving the school.”

With respect to each of the foregoing items, the “development” of which must be included as part of a school safety plan’s requirement of “Identifying appropriate strategies and programs” under subdivision (a)(2) of section 32282, plaintiff alleges defendants breached mandatory duties “to adequately identify, develop, and implement” the required policies and procedures (§ 33282, subds. (a)(2)(C), (D), (G), (J), (K) & (L)) and other strategies and programs (§ 33282, subds. (a)(2)(H)).

Plaintiff further alleges defendants breached a claimed mandatory duty under section 32282, subdivision (c), which requires “[e]ach schoolsite council or school safety planning committee, in developing and updating a comprehensive school safety plan, [to], where practical, consult, cooperate, and coordinate with other schoolsite councils or school safety planning committees.”

Plaintiff alleges that “Defendants’ failure to discharge the mandatory duties alleged herein allowed Noah Serrate, a person whom Defendants knew or, through the exercise of reasonable care, should have known had made violent threats against Monache High School, its students, and/or its staff, and who was under criminal prosecution and prohibited from being at, near, or in the vicinity of Monache High School, to enter the campus through an open, unguarded gate.”

Further, plaintiff alleges: “Defendants’ failure to discharge the mandatory duties alleged herein was a substantial factor in causing Plaintiff’s injuries because, had Defendants adequately assessed campus crime, implemented adequate safety strategies and programs, implemented adequate serious-discipline policies, implemented adequate dangerous-pupil notification procedures, implemented adequate safe ingress and egress procedures, implemented adequate procedures for maintaining a safe and orderly environment, implemented adequate tactical response procedures, implemented adequate armed-assailant procedures and drills where applicable, implemented adequate dangerous-activity assessment and response procedures, and adequately consulted, cooperated, and coordinated with other schoolsite councils or school safety planning committees, Serrate would have been identified, excluded, stopped, reported, intercepted, removed, or otherwise prevented from entering campus through the open and unguarded gate and attacking Plaintiff in her classroom.”

Analysis

Regarding the various provisions of article 5 claimed to support Government Code section 815.6 liability in the FAC, the Fourth District in *C.I. v. San Bernardino City Unified School Dist.* (2022) 82 Cal.App.5th 974 [298 Cal.Rptr.3d 651] (C.I.) has explained:

“Education Code sections 32280–32289 require districts to develop a ‘comprehensive school safety plan that addresses the safety concerns identified through a systematic planning process,’ and that aims at preventing crime and violence on campus. (Ed. Code, § 32280.) While Education Code section 32280 imposes a duty to develop a school safety plan, it leaves implementation to the public entity’s discretion or judgment: ‘It is the intent of the Legislature that all California public schools ... develop a comprehensive school safety plan It is also the intent of the Legislature that all school staff be trained on the comprehensive school safety plan.’ (Ibid.) There is no mandatory requirement that a school’s safety plan must include specific action items. (Ed. Code, § 32282, subd. (a)(2)(J).) Rather, the ‘procedures to prepare for active shooters or other armed assailants shall be based on the specific needs and context of each school and community.’ (Ibid.)” (Id., at p. 980, fn. 3.)

From this, despite the observation in C.I. that “Education Code section 32280 imposes a duty to develop a school safety plan” (ibid.), which defendants acknowledge (see Defendants’ MPA, p. 6), defendants go on to argue that Education Code sections 32280, 32281, 32282, 32286, 32288 impose no mandatory duty and they, contend, on that basis, that “there is no right to private cause of action for an alleged violation of the aforementioned code sections.”

Defendants maintain plaintiff’s first cause of action “alleges that Plaintiff suffered injuries resulting from Defendants’ implementation of the comprehensive school safety plan, an act which is in the public entity’s discretion,” and that they are immunized from liability for their exercise of that discretion pursuant to Government Code sections 815.2 and 820.2. (See Gov. Code, §§ 815.2, subd. (b) [“Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.”]; 820.2 [“Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.”].)

Plaintiff correctly notes, however, that “Defendants’ assertion that the First Cause of Action merely challenges ‘implementation’ disregards the FAC,” in that plaintiff additionally and specifically alleges “[d]efendants failed to perform the antecedent, expressly required acts governing the plan’s development, contents, annual review, updating, evaluation, submission, and approval.”

On the point specifically of the defendants alleged duty to formulate safety plans in the first place, defendants highlight that Education Code section 32281, subdivision (b)(1), provides “that the school site council ‘shall write and develop a comprehensive school safety plan relevant to the needs and resources of that particular school,’” (emphasis in original) and they argue that “[t]his language ... requires that the school safety plan is created as relevant to the needs and resources of a particular school, which involves discretion,” and, therefore, that “[t]his demonstrates that this duty”—the duty to “write and develop a comprehensive school safety plan”—is not mandatory, but rather discretionary.

The fact that discretion exists to “write and develop” a plan “relevant to the needs and resources of [the] particular school,” however, does not render the duty to “write and develop” a plan, in the first instance, discretionary.

Defendants effectively concede this point, describing “whether Defendants created the comprehensive safety plan as required” as a “mandatory portion of these statutes,” but they argue that breach of such duty cannot support liability because “creation of such a safety plan does not protect Plaintiff from the type of injury she alleges.” (See *B.H.*, supra, 62 Cal.4th at p. 179 [describing, amongst the three elements of Government Code section 815.6 liability, the elements that “the enactment was designed to protect against the particular kind of injury allegedly suffered,” and “the breach of the mandatory duty proximately caused the injury.”].) Defendants argue that plaintiff’s injuries necessarily could have arisen solely from failures with respect to implementation of the safety plan, and that “[t]he creation of the plan,” itself, “without a mandatory requirement to implement the plan, means nothing.”

Plaintiff vehemently disputes this contention. She argues that she “falls squarely within the class the enactments were intended to protect, and the attack constitutes the precise category of harm the enactments were intended to prevent or mitigate.”

The court agrees with plaintiff that, generally speaking, that she falls within the scope of persons article 5 was intended to protect.

Although the case is not directly applicable to the circumstances here, the Fourth District in *Hector F. v. El Centro Elementary School Dist.* (2014) 227 Cal.App.4th 331 [173 Cal.Rptr.3d 413] explained that “[b]y way of its enactment of a scheme of interrelated statutes,” including those found in article 5, “the Legislature has imposed on public schools in California an affirmative duty to protect public school students from discrimination and harassment engendered by race, gender, sexual orientation or disability,” and, in particular, noted “Education Code section 32282 requires that public schools develop and implement comprehensive school safety plans which include a discrimination and harassment policy. [Citation.]” (*Id.*, at p. 333.)

And, just as much as public school students who might suffer “discrimination and harassment engendered by race, gender, sexual orientation or disability” are subjects of the “affirmative duty to protect” that “the Legislature has imposed on public schools in California,” so too must be students who might suffer harm in the manner alleged by plaintiff in the FAC. Indeed, just as a school safety plan must include identification of “appropriate strategies and programs that will provide or maintain a high level of school safety ... which shall include the development of ... [¶] ... [a] discrimination and harassment policy ... ” (§ 32282, subd. (a)(2)(E)) so too must such plans include identification of such “appropriate strategies and programs” that “include the development of,” by way of examples pertinent to the instant case, “policies ... for pupils who committed ... school-designated serious acts that would lead to suspension, expulsion, or mandatory expulsion recommendations” (§ 32282, subd. (a)(2)(C)); “[p]rocedures for conducting tactical responses to criminal incidents” (§ 32282, subd. (a)(2)(J)); and “[p]rocedures to assess and respond to reports of any dangerous, violent, or unlawful activity that is being conducted or threatened to be conducted at the school” (§ 32282, subd. (a)(2)(L)).

Undoubtedly, then, plaintiff falls within the scope of persons article 5 was intended to protect.

The court agrees with defendants, however, that, as a matter of law, the claimed breach of the duty to formulate a safety plan cannot be “the proximate cause of plaintiff’s alleged injuries.” While proximate cause is ordinarily a question of fact, here the “the facts are such that the only reasonable conclusion is an absence of causation, [and, therefore] the question is one of law, not of fact.” [Citations.]” (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 353 [188 Cal.Rptr.3d 309, 349 P.3d 1013] (*Dept. of State Hospitals*)).

A line of California cases have held “that proximate cause was not established when a governmental defendant’s failure to act allegedly caused injury, but the chain of causation included discretionary determinations for which no liability could be imposed.” (*Ibid.*, discussing, without criticism, *Whitcombe v. County of Yolo* (1977) 73 Cal. App. 3d 698 [141 Cal. Rptr. 189], *State of California v. Superior Court* (1984) 150 Cal. App. 3d 848 [197 Cal. Rptr. 914], and *Fleming v. State of California* (1995) 34 Cal.App.4th 1378 [41 Cal. Rptr. 2d 63], which were relied upon by the lower Court of Appeal in support of this proposition.)

And, while *Dept. of State Hospitals* recognized that “intervention of any discretion between breach of a mandatory duty and a subsequent injury will [not] always foreclose a finding of proximate cause” (*id.*, at p. 355), it is evident that the defendants’ discretion under article 5 does foreclose such a finding. While provisions of article 5 mandate the development of safety plans, and, in that respect, impose a mandatory duty intended to protect students such as the plaintiff, article 5 does not provide mandatory directives on how to implement the policy, and that matter of how to implement the policy, within the discretion of the defendants, is an the alleged source of the nature and type of injuries plaintiff allegedly suffered. Plaintiff alleges no injury attributable to the failure to develop a school safety plan. Instead, accepting her allegations as true, she alleges an injury attributable to the failure to develop a school safety plan that included “adequate” measures to protect her from the injuries she allegedly suffered.

However, the adequacy of measures adopted in a safety plan, including the adequacy of assessments of campus crime; the adequacy of safety strategies and programs; the implementation of adequate serious-discipline policies, dangerous-pupil notification procedures, safe ingress and egress procedures, procedures for maintaining a safe and orderly environment, tactical response procedures, armed-assailant procedures and drills where applicable, dangerous-activity assessment and response procedures; and the adequacy of efforts in consulting, cooperating, and coordinating with other schoolsite councils or school safety planning committees are all matters that fall in the category of discretionary decisions for which governmental agencies are immune under Government Code sections 815.2 and 820.2.

Because it the inadequacy of these measures and actions that plaintiff ultimately alleges proximately caused the failure to identify, exclude, stop, report, intercept, remove or otherwise prevent Serrate from entering the Monache High School campus through the open and unguarded gate and attacking her in her classroom, the court finds, as a matter of law, “the facts are such that the only reasonable conclusion is an absence of causation” [citations]” (Dept. of State Hospitals, supra, 61 Cal.4th at p. 353.)

Accordingly, the demurrer is sustained to the first cause of action without leave to amend.

B. Second Cause of Action - Breach of Mandatory Duties Imposed by Enactment: Dangerous Pupil and Teacher Notification Duties (Gov. Code, § 815.6; Ed. Code § 49079)

Plaintiff’s second cause of action additionally seeks to impose liability under Government Code section 815.6 based on a claimed breach of a mandatory duty imposed by Education Code section 49079.

Section 49079 is also referenced in plaintiff’s first cause of action. As noted above, subdivision (a)(2) of section 32282 requires safety plans to include “Identifying appropriate strategies and programs that will provide or maintain a high level of school safety and address the school’s procedures for complying with existing laws related to school safety, which shall include the development of,” inter alia, “[p]rocedures to notify teachers of dangerous pupils pursuant to Section 49079.” (§ 32282, subd. (a)(2)(D).)

As the court noted also above, section 49079 requires school districts to “inform the teacher of each pupil who has engaged in, or is reasonably suspected to have engaged in, any of the acts described in any of the subdivisions, except subdivision (h), of Section 48900 or in Section 48900.2, 48900.3, 48900.4, or 48900.7 that the pupil engaged in, or is reasonably suspected to have engaged in, those acts.” (Id., subd. (a).)

Notably, section 49079 solely imposes an obligation to provide notification to “the teacher” of a pupil in the circumstances described, and establishes criminal consequences for the failure, specifically, to provide that notification when required (while also immunizing school districts and their employees for providing such information to a teacher unless it is proven that the information was false and the district or employee knew or should have known the information was false, or the information was provided with reckless disregard for its truth or falsity). (Id., subds. (b) & (c).)

Additionally, section 49079 provides that “[a]ny information received by a teacher pursuant to this section shall be received in confidence for the limited purpose for which it was provided and shall not be further disseminated by the teacher.” (Id., subd. (e).)

Defendant first argues that section 49079 “does not expressly provide terms indicating that the Legislature intended to create a private cause of action,” and, without citation to authority, submits that section 49079 was (along with section 49073, which is not at issue in the FAC) merely “enacted to provide school districts guidance on when the release of ‘pupil records’ is appropriate and/or proper.”

While section 49079 no doubt provides "guidance" on the matter of release of information concerning a "pupil," however, the court agrees with plaintiff, insofar as it disposes of this first argument of defendants, that 49073 is "protective, not merely administrative" (Plaintiff's opposition, p. 11) at least in the sense that the statute appears to impose a duty to inform teachers of a student's record of physical violence (see *Skinner v. Vacaville Unified School Dist.* (1995) 37 Cal.App.4th 31, 39 [43 Cal.Rptr.2d 384].)

Not addressed here, is whether plaintiff would be among those persons section 49079 was designed to protect (Gov. Code, § 815.6; B.H., supra, 62 Cal.4th at p. 179), notwithstanding that she alleges she was, "[a]t all times ... mentioned" in the FAC, "a pupil at Monache High School" and not a teacher. This issue is not raised in defendants' demurrer.

Defendants next maintain the second cause of action is insufficiently plead because the FAC does not allege Serrate was a student of plaintiff's teacher, Robert Sundre, in whose class plaintiff was seated at the time of the incident.

Plaintiff responds by referencing mandates she apparently derives from a broader collection of statutes within the Education Code, and by arguing that her "claim is not limited to Sundre; it alleges a lack of notification to the other teachers required to receive the information."

The court agrees with defendants on this point.

The asserted basis of Government Code section 815.6 liability is solely Education Code section 49079. Section 49079 solely imposes a duty to "inform the teacher of each pupil who has engaged in, or is reasonably suspected to have engaged in, any of the acts described in any of the subdivisions, except subdivision (h), of Section 48900 or in Section 48900.2, 48900.3, 48900.4, or 48900.7 that the pupil engaged in, or is reasonably suspected to have engaged in, those acts." (Italics added.) Plaintiff alleges she was attacked by Serrate while she "was seated in Robert Sundre's Zero Period Driver's Education class" and the only remotely possible way that plaintiff alleges that injury could have resulted from breach of a mandatory duty under section 49079 is that defendants failed "to provide the required information to Robert Sundre."

For these reasons, if liability can be established under section 49079 at all, and the court does not here determine that it can be, it is at least necessary for plaintiff to allege that Serrate was a student of Sundre at a time Serrate had "engaged in, or [was] reasonably suspected to have engaged in, any of the acts described in any of the subdivisions, except subdivision (h), of Section 48900 or in Section 48900.2, 48900.3, 48900.4, or 48900.7 ... during the previous three school years." (§ 49079, subd. (a) & (d).)

The court does not here determine, as it is not occasioned to at this point, that failure to notify Sundre (assuming Serrate was, or is alleged to have been, a student of Sundre) may properly be determined the proximate cause of plaintiff's injuries.

On the basis stated, the demurrer to the second cause of action is sustained with leave to amend.

The court notes defendants additionally argue, their third ground stated in support of demurrer to the second cause of action, that plaintiff's tort claim, a copy of which is attached to the FAC, "does not indicate to Defendants that a theory of liability included a violation of Education Code § 49079."

The purpose of the Government Claims Act statutes is solely "'to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation.'" [Citation.] Consequently, a claim need not contain the detail and specificity required of a pleading, but need only 'fairly describe what [the] entity is alleged to have done.' [Citation.]" (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 446 [20 Cal.Rptr.3d 176, 99 P.3d 500].)

The court finds the FAC reflects plaintiff's compliance with this standard.

There being no other grounds presented, the demurrer to the second cause of action is sustained with leave to amend.

II. Motion to Strike

Civil Code section 3287, subdivision (a), provides that “[a] person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day” is “entitled also to recover” pre-judgment interest. Subdivision (a) further provides that it “is applicable to recovery of damages and interest from any debtor, including the state or any county, city, city and county, municipal corporation, public district, public agency, or any political subdivision of the state.”

Section 3287, subdivision (a) “is ‘an exception to the general rule that interest cannot be recovered against a state or municipality.’ [Citation.]” (Flethez v. San Bernardino County Employees Retirement Assn. (2017) 2 Cal.5th 630, 640 [214 Cal.Rptr.3d 482, 389 P.3d 1232] (Flethez).)

Where an action lies in tort, “it is the generally accepted view that interest cannot be awarded on damages for personal injury.” (Curtis v. State of California ex rel. Dept. of Transportation (1982) 128 Cal.App.3d 668, 686 [180 Cal.Rptr. 843] (Curtis).)

Citing Flethez and Curtis, defendants contend each of plaintiff’s causes of action lie in tort and, therefore, plaintiff may not recover prejudgment interest.

Plaintiff submits no opposition. The authorities cited by defendant appear to support their position. The motion to strike is granted.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.